

DEPARTMENT OF THE NAVY

NAVSUP WSS

700 ROBBINS AVENUE PHILADELPHIA PA 19111-5098

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Philadelphia		Type	A1	
Folder #		24117-0009		PD #	N0038324X1595	
Item Manager		Work Function	Planner	Phone	(215) 697-0324	Code N9824.04
Technician		Work Function	Equipment Specialist	Phone	(215) 697-6464	Code N9824.21
Buyer		Work Function	Contract Specialist	Phone	(215) 697-2813	Code N763.03

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares

☐ Repair/Overhaul

☐ Modification

☐ Management

☐ Piece Parts

☐ Data Report

Nomenclature	COMMS PDC	Quantity	7 ea
NSN	1680-01-648-1099	Cage Code	
P/N	B001217E08050-1	Unit Price	
Option	N	Option %	
Days			
Estimated Value			
Ship To			

Period of Performance: Expected Final Delivery Date	04/26/2025
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Line of Accounting

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 4

Acquire, for the first time, directly from the actual manufacturer.

A/RMSC D

The data needed to acquire/repair this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. A/RMCS 3, 4, or 5 are valid.

This acquisition will be solicited to

Northrop Grumman (78022) Per JDRS/ASE, these items are Critical Application Items (CAI), thus limiting qualified sources. The solicitation of the items listed above will be solicited to Northrop Grumman (78022) because they are currently the only sources capable of satisfying this requirement. All alternate sources must qualify IAW the DCA's procedures, as approved by NAVAIR/NAVSUP WSS Source Development Department prior to contract award. The Navy does not currently have in its possession any data, supporting test equipment, and associated specifications or drawings, required to procure the items. Since the Navy does not own sufficient information such as any drawings, specifications, test equipment/procedures, a full and open competitive solicitation cannot be supported at this time. NAVSUP-WSS must procure the items through Northrop Grumman (78022) at this time.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsized on the government-wide point of entry on

06/05/2024

and as a result no other sources expressed an interest in this acquisition.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

The latest configuration has been checked and all records (ITIMP, JDRS/ASE, etc.) have been properly aligned, identified, and documented. These items are Critical Application Items, thus limiting qualified sources. Per JDRS/ASE, Northrop Grumman (78022) is the only approved source currently for this purchase. The data necessary to purchase these items from sources other than Northrop Grumman (78022) is not physically available and is uneconomical to obtain currently. The available technical data is insufficient for the development of new sources. Source Development Department files indicate no Source Approval Request (SAR) has been received from any party interested in becoming an approved source. Northrop Grumman (78022) is the only approved source at this time.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A No Previous J&A - Award history does not exist

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By		Work Function	Planner	Created Date	04/26/2024
					26-APR-24

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature		Work Function	Planner	Requirements Cognizance Signature Date	05/24/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature		Work Function	Equipment Specialist	Technical Cognizance Signature Date	05/28/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Source Validation Cognizance		Work Function	Equipment Specialist	Source Validation Cognizance Signature Date	05/28/2024

As of this date, I confirm KO has reviewed the information contained in this J&A and determined sufficient for purposes of processing/ completing Small Business Coordination Record DD2579

KO Review for Small Business Concurrence		Work Function	Contract Specialist	KO Review for Small Business Concurrence Date	06/04/2024

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature		Work Function	Contract Specialist	Contracting Officer Certification Signature Date	07/03/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature		Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	07/11/2024

I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature		Work Function	Attorney	Legal Sufficiency Review Signature Date	07/15/2024

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required		Work Function		Approval Required	
By Far 6.304			Competition	By Far 6.304	07/18/2024
Signature			Advocate	Signature Date	